IN THE UNITED STATES ARMY COURT OF CRIMINAL APPEALS

UNITED STATES
Appellee

v.

Sergeant (E-5)
HASAN K. AKBAR,
United States Army,
Appellant

BRIEF ON BEHALF OF APPELLANT

Docket No. ARMY 20050514

Tried at Fort Knox, Kentucky, and Fort Bragg, North Carolina, on 9 March, 10, 24 May, 2, 24 August, 2 December 2004, 31 January, 4 March, 1, 6-8, 11-14, 18-22, and 25-28 April 2005, before a general court-martial appointed by Commander, Headquarters, XVIII Airborne Corps, Colonels Dan Trimble, Patrick J. Parrish, and Stephen Henley, Military Judges, presiding.

TO THE HONORABLE, THE JUDGES OF THE UNITED STATES ARMY COURT OF CRIMINAL APPEALS

Part One: Introduction[12]

Thirty-eight minutes. That is how long the defense's sentencing case lasted. Not a lot of time to tell the life story of anyone.

The life story of Sergeant Hasan Akbar has been one of turmoil and confusion. While the events of his life will be

[1]Within this brief, appellant is referred to as "Hasan," "appellant" or "Sergeant (SGT) Akbar". In addition, in relating his life history and in some of the attached exhibits, appellant is sometimes referred to as "Hasan", or "Mark Kools".

[2]A Motion to Attach Defense Appellate Exhibit (DAE) B-D, G, I-LL, has been filed contemporaneously with this brief and attached in a Defense Appendix (DA) for the convenience of the Court. There will be no citation to DAE A, E-F, and H as they were already part of the record of trial and will be cited within the Brief as such.

ASSIGNMENTS OF ERROR AND ARGUMENT

Part Four: Ineffective Assistance of Counsel

Summary

Appellant received ineffective assistance of counsel at every stage of his court-martial. As explained below, appellant's trial defense counsel were woefully prepared to defend appellant because they were inexperienced in capital litigation, their qualifications failing to even approach the ABA Guidelines for such representation. Thus hobbled, trial defense counsel, failed to adequately prepare appellant's case for court-martial. They failed to adequately investigate appellant's mental health and failed to provide appellant's psychiatric expert witness information necessary to prepare his diagnosis and testimony. Trial defense counsel also failed to properly utilize the mitigation experts provided by the convening authority, and failed to request additional funding for those experts. On the eve of trial, trial defense counsel ceased contact with these experts, effectively foreclosing the presentation of any meaningful mitigation evidence during sentencing.

Before evidence was ever presented, trial defense counsel failed to challenge members that exhibited a clear bias, knowledge of appellant's case, and an inflexible attitude towards sentencing. During the presentation of evidence, trial defense counsel presented no tactically coherent theme. Instead, they flailed, presenting appellant's diary, which contained more aggravating than mitigating evidence, and essentially admitted appellant's guilt. Also, during merits, trial

defense counsel placed the appellant's psychiatric expert on the stand even though that witness had been unable, because of poor coordination on the part of defense counsel, to arrive at a complete mental health diagnosis for appellant. At sentencing, instead of presenting a mitigation expert or other witness to describe SGT Akbar's background and mental condition, as is ordinarily done in death penalty cases, trial defense counsel presented marginal value witnesses: a high school teacher, his company commander, and his First Sergeant, as is more akin to sentencing presentations in the ordinary court-martial.

Assignment of Error I.

SERGEANT HASAN K. AKBAR WAS DENIED HIS RIGHT TO THE EFFECTIVE ASSISTANCE OF COUNSEL, AS GUARANTEED BY THE SIXTH AMENDMENT TO THE UNITED STATES CONSTITUTION, AT EVERY CRITICAL STAGE OF HIS COURT-MARTIAL.

The Sixth Amendment to the United States Constitution guarantees an accused the right to the "effective assistance of counsel." *United States v. Cronic*, 466 U.S. 648, 653-56 (1984). The right to the effective assistance of counsel is likewise guaranteed to every member of the United States armed forces before, during, and after trial. *See United States v. Scott*, 24 M.J. 186 (C.M.A. 1987); *United States v. Russell*, 48 M.J. 139, 140 (C.A.A.F. 1998); *United States v. Hicks*, 47 M.J. 90, 92 (C.A.A.F. 1997); *see also* Article 27, UCMJ; 10 U.S.C. § 827 (2002). This right is not confined only to representation during the trial on the merits, but equally to the sentencing portion of a trial because it is also a critical

stage of a criminal proceeding where substantial rights of a criminal accused may be affected. *See Moore v. Michigan*, 355 U.S. 155, 160 (1957); *Mempa v. Rhay*, 389 U.S. 128, 134 (1967) (citing *Gideon v. Wainwright*, 372 U.S. 335 (1963); *Townsend v. Burke*, 334 U.S. 736 (1948)). When a service member is denied effective representation by counsel, he is entitled to a new trial. *Scott*, 24 M.J. at 193.

Effective assistance occurs when counsel's performance, though not error free, constitutes a meaningful test of the prosecution's evidence. *Cronic*, 466 U.S. at 656; *Strickland v. Washington*, 466 U.S. 668, 690 (1984). The tools of this testing include the presentation of evidence and probing cross examination. *Cronic*, 466 U.S. at 659. Investigation is a critical precursor to application of such tools and essential to effective assistance to the client. *United States v. Polk*, 32 M.J. 150, 153 (C.M.A. 1991); *Scott*, 24 M.J. at 188.

The law presumes counsel's competence. Courts are to accord heavy deference to avoid second-guessing counsel's professional decisions and performance. *United States v. Morgan*, 37 M.J. 407 (C.M.A. 1993); *Scott*, 24 M.J. at 188. An accused bears the burden of rebutting this presumption of competence. *United States v. Crum*, 38 M.J. 663, 665 (A.C.M.R. 1993).

The standard of review for ineffective assistance of counsel is governed by the well known standards enunciated by the Supreme Court in *Strickland v.*

Washington, 466 U.S. 668 (1984), and that standard of review, unless otherwise noted, applies to all the claims of ineffective assistance of counsel that follow.

The issue of ineffective assistance of counsel is a mixed question of law and fact. *United States v. Wean*, 45 M.J. 461, 463 (C.A.A.F. 1997). Whether counsel's performance was deficient, and if so, whether it was prejudicial, are questions which the appellate courts review de novo. *Id.* at 463.

To establish that a defense counsel was ineffective, an appellant must first show that his defense counsel's performance was deficient, and then show that he was prejudiced by the deficiency. *Strickland*, 466 U.S. at 687. The proper inquiry in the first prong is whether counsel's conduct fell below an objective standard of reasonableness, or was it outside the "wide range of professionally competent assistance." *Id.* at 694. The second prong is satisfied by a showing "that there is a reasonable probability that, but for counsel's unprofessional errors, the result of the proceeding would have been different." *Id.*

Under *Strickland*, appellant is not required to make an "outcome determinative" showing that "counsel's deficient conduct more likely than not altered the outcome in the case." *United States v. Howard*, 47 M.J. 104, 106 n.1 (C.A.A.F. 1997) (quoting *Strickland*, 466 U.S. at 693). In addition to the test established in *Strickland*, a breakdown in the adversarial process alone can violate the right to counsel, requiring reversal without regard to prejudice. *Cronic*, 466

U.S. at 659. According to the *Cronic*, "the right to effective assistance of counsel is thus the right of the accused to require the prosecution's case to survive the crucible of meaningful adversarial testing." *Id.* at 657.

The first-prong of the *Strickland* test focuses on whether counsel rendered a deficient performance. Under this prong, an accused can rebut the presumption of competency of counsel by pointing out specific errors made by his defense counsel which were unreasonable under prevailing professional norms. The fact that other attorneys might have performed differently does not necessarily establish that counsel failed to render reasonably effective assistance; rather, a claimant must show that the counsel's performance was outside "the wide range of reasonable professional assistance." *Quartararo v. Fogg*, 679 F. Supp. 212, 239 (E.D.N.Y. 1988) (quoting *Strickland*, 466 U.S. at 689 (1984)).

Reasonableness is to be evaluated from the counsel's perspective at the time of the alleged error and in light of all the circumstances, keeping in mind that the "counsel's function is to make the adversarial testing process work in the particular case." *Scott*, 24 M.J. at 188 (quoting *Cronic*, 466 U.S. at 690). Reviewing courts will be "highly deferential" in their scrutiny of a counsel's performance. *Strickland*, 466 U.S. at 689.

As previously noted, the *Strickland* test applies to ineffectiveness claims both as to counsel's performance on the merits and on sentencing. As to the merits,

the examination is whether there is a "reasonable probability that, absent the errors, the factfinder would have had a reasonable doubt respecting guilt." *Cronic*, 466 U.S. at 694. The test, as applied to sentencing, is "whether there is reasonable probability that, absent the errors, the sentencer – including an appellate court, to the extent it independently re-weighs the evidence – would have concluded that the balance of aggravating and mitigating circumstances did not warrant death." *Strickland*, 466 U.S. at 695 (emphasis added).

WHEREFORE, this Court should set aside the death sentence and approve a sentence of life imprisonment.

Assignment of Error LVII.

THE DEATH SENTENCE IN THIS CASE VIOLATES THE *EX POST FACTO* CLAUSE, THE FIFTH AND EIGHT AMENDMENTS, THE SEPARATION OF POWERS DOCTRINE, THE PREEMPTION DOCTRINE, AND ARTICLE 55, UCMJ, BECAUSE WHEN IT WAS ADJUDGED NEITHER CONGRESS NOR THE ARMY HAD SPECIFIED A MEANS OR PLACE OF EXECUTION. *SEE* AR 190-55 (17 January 2006); *BUT SEE UNITED STATES V. TIPTON*, 90 F.3D 861, 901-03 (4TH CIR. 1996).

WHEREFORE, this Court should set aside the death sentence and approve a sentence of life imprisonment.

Assignment of Error LVIII.

THE PANEL'S RECONSIDERATION OF THE SENTENCE IN APPELLANT'S CASE VIOLATED THE DOUBLE JEOPARDY CLAUSE OF THE FIFTH AMENDMENT BECAUSE "NO PERSON . . . SHALL BE SUBJECT FOR THE SAME OFFENSE TO BE TWICE PUT IN JEOPARDY OF LIFE." *SEE BURLINGTON V. MISSOURI*, 451 U.S. 430 (1981) (APPLYING THE DOUBLE JEOPARDY CLAUSE OF THE CONSTITUTION TO CAPITAL SENTENCING); *SEE ALSO* R.C.M. 922(B)(2) (ANALYSIS: RULE WAS AMENDED TO CONFORM TO R.C.M. 1004(A) REQUIREMENT THAT A SENTENCE OF DEATH BE UNANIMOUS. THE RULE PRECLUDES THE USE OF RECONSIDERATION UNDER R.C.M. 924 TO CHANGE AN INITIAL NONUNANIMOUS FINDING OF GUILTY INTO A UNANIMOUS VERDICT FOR THE PURPOSE OF AUTHORIZING A CAPITAL SENTENCING PROCEEDING. THE SAME CONCERNS ARE PRESENT IN BARRING THE RECONSIDERATION OF A NONUNANIMOUS SENTENCE FOR DEATH INTO A UNANIMOUS SENTENCE OF DEATH).

WHEREFORE, this Court should set aside the death sentence and approve a sentence of life imprisonment.

WHEREFORE, Sergeant Akbar respectfully requests this Honorable Court grant the requested relief.

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Certificate of Service

I certify that a copy of the foregoing was delivered to the Court and the Government Appellate Division on 1 February 2010.

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